

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
***HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT**
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

The Court recuses itself in this case. Further notice will be sent to the parties regarding the new department and continued hearing date.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
MOTION TO STRIKE PRAYER FROM 2ND AMENDED COMPLAINT
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

The Court recuses itself in this case. Further notice will be sent to the parties regarding the new department and continued hearing date.

3. 9:00 AM CASE NUMBER: C24-02448
CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS**
FILED BY: FAT.HOMES LLC
TENTATIVE RULING:

The Court continues the hearing on this motion to January 16, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: EQUITY HR, INC.
TENTATIVE RULING:

Defendant Equity HR's demurrer to the Second Amended Complaint is sustained in its entirety with leave to amend. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

Defendant argues that they should not be considered an employer in this case because they are alleged to be one of three joint employers and there are no facts supporting Defendant Equity as an employer.

Defendant argues that this Court should apply in integrated enterprise test. " 'The federal courts have developed a test, derived from federal labor case law, to determine whether two corporations

should be considered a single employer for title VII purposes. Commonly called the “integrated enterprise” test, it has four factors: interrelation of operations, common management, centralized control of labor relations, and common ownership or financial control.’ [Citation.]... Common ownership or control alone is never enough to establish single employer liability, and courts ‘often deem centralized control of labor relations the most important’ factor. [Citation.] ‘ “The critical question is, ‘[w]hat entity made the final decisions regarding employment matters related to the person claiming discrimination?’ ” ‘ (Ibid.)” (*Mathews v. Happy Valley Conference Center, Inc.* (2019) 43 Cal.App.5th 236, 248.)

Plaintiff, however, argues that the Court should follow *Martinez v. Combs* (2010) 49 Cal.4th 35. “California law specifies the elements necessary to define an employer. ‘To employ’ has ‘three alternative definitions.’ (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) ‘It means: (a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship.’ (*Ibid.*) [] The broad definition of an employer includes “any person ... who directly or indirectly, or through an agent or any other person, employs or exercises control over the wages, hours, or working conditions of [an employee].” [Citation.]” (*Castaneda v. Ensign Group, Inc.* (2014) 229 Cal.App.4th 1015, 1019.)

“ ‘There is no magic formula for determining whether an organization is a joint employer. Rather, the court must analyze “myriad facts surrounding the employment relationship in question.” [Citation.] No one factor is decisive. [Citation.]’ [Citation.]” (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 124-125.)

Defendant argues that the SAC does not provide facts showing they are a joint employer. The SAC makes only a conclusory allegation that Healthmet, Vital and Equity are defendant employers and that Plaintiff worked for them. (SAC ¶¶ 5, 11.) The Court finds that Plaintiff has not alleged facts showing that Equity is a joint employer of Plaintiff. In opposition Plaintiff relies on facts not alleged in the complaint. Equity HR’s demurrer is therefore sustained in its entirety for Plaintiff to allege facts showing that Equity HR is a joint employer.

Plaintiff’s requests for judicial notice are granted. Healthmet’s cross-complaint, Equity’s answer and the Court’s order granting the demurrer to the first amended complaint are all part of the record in this case. In requesting judicial notice, Plaintiff seeks judicial notice of the documents attached as exhibits to Healthmet’s cross-complaint. The Court may take judicial notice that these documents are attached to the cross-complaint, but does not take notice of the truth of their contents. Thus the request for judicial notice, even if granted, does not cure the defect in the pleading.

Defendant also argues that the claims for assault (Seventh Cause of Action), intentional infliction of emotional distress (Eighth Cause of Action) and unfair business practice (Ninth Cause of Action) fail.

For the reasons explained in Healthmet’s demurrer, the assault claim (Seventh Cause of Action) has not been sufficiently alleged. Further, the Court agrees with Defendant’s argument that there are no allegations showing that Equity HR was involved in the assault. In addition to the joint employer issue, the demurrer to the assault claim is sustained with leave to amend on these grounds.

As to the intentional infliction of emotional distress (IIED) claim (Eighth Cause of Action), Defendant argues that the facts alleged are insufficient to state an IIED claim and that there are no facts as to Equity HR. The Court finds that the facts alleged are sufficient to show extreme and outrageous conduct, but that the facts alleged do not show how Equity HR could be liable for Greer’s conduct. In

addition to the joint employer issue, the demurrer is sustained with leave to amend on this ground.

Defendant Equity HR argues that the unfair competition claim (Ninth Cause of Action) fails because the other claims fail. The Court is already sustaining the demurrer as to this claim on the joint employer issue and declines to rule on this argument as to Equity HR until there are facts showing Equity HR as a joint employer. Equity HR may re-raise this argument in the future.

5. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT RE: BLAIR
FILED BY:

TENTATIVE RULING:

Defendant Healthmet, Inc. and Benjamin Greer, M.D.'s demurrer to the Second Amended Complaint is overruled as to cause of action 1, 2, 3, 4, 8 and 9, and otherwise sustained with leave to amend. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

Plaintiff is suing for (1) constructive tortious discharge in violation of public policy, (2) gender discrimination, (3) harassment based on gender, (4) failure to prevent discrimination and harassment, (5) violation of Labor Code section 1102.5, (6) violation of Labor Code section 6310-6311, (7) assault, (8) intentional infliction of emotional distress and (9) unfair business practices.

The Court previously sustained Defendants' demurrer with leave to amend because Plaintiff requested leave to amend. The Court did not consider the individual claims in depth.

Defendants Healthmet and Greer demur to each cause of action based on the failure to allege sufficient facts to state a cause of action under Code of Civil Procedure section 430.10(e).

Plaintiff alleges that she worked at Defendant Employer from February 2022 to May 2024. (SAC ¶11.) She alleges that when she interviewed for the job, Greer stated that he could be better than Plaintiff's fiancée. (SAC ¶12.) Plaintiff alleges that Greer is the principal and owner of the business, which creates a reasonable inference that Greer was Plaintiff's supervisor. (SAC ¶12.) Two weeks after being hired, Greer showed Plaintiff images of very attractive woman dressed in tight, revealing yoga outfits. Greer ask Plaintiff what she thought and if he should go out with the woman. (SAC ¶13.)

Plaintiff was promoted from receptionist to office manager in October 2022. (SAC ¶14.) Initially, Greer came to the office where Plaintiff worked once a week. However, the main doctor at Plaintiff's location lost her medical license in March 2023 and Greer began coming to the office on a daily basis. (SAC ¶¶15-18.) Plaintiff alleges that Defendant Employer and Greer had a pattern of discriminating, harassing and retaliating against staff based on gender. (SAC ¶22.) Greer verbally abused and sexually harassed a former staff member O'Neil. (SAC ¶¶23-25.) On one occasion, Plaintiff was on her knees cleaning the fridge when Greer came in and made a comment about Plaintiff being on her knees. (SAC ¶26-27.) Greer commented on the physical appearance of a medical assistant. (SAC ¶28.) Greer showed Plaintiff photographs of his ex-wife and asked if Plaintiff thought she was pretty.